SCHEDULED AND TRIBAL AREAS

ARTICLE 244 STARTING POINT → FIFTH SCHEDULE: DECLARATION, GOVERNOR → SIXTH SCHEDULE TERRITORY, COUNCIL → SIXTH SCHEDULE LEGISLATIVE, EXECUTIVE → FIFTH AND SIXTH SCHEDULES → PESA, FRA, LAND AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 ARTICLE 244 STARTING POINT AND THE AUTONOMY-DEVELOPMENT RATIONALE

ARTICLE 244 STARTING POINT AND THE AUTONOMY-DEVELOPMENT RATIONALE · ROOT PROBLEM ORDINARY TERRITORIAL ADMINISTRATION MAY REPRODUCE DISPOSSESSION AND · ARTICLE 244(1) · FIFTH SCHEDULE · SCHEDULED AREAS AND SCHEDULED TRIBES OUTSIDE THE SIXTH SCHEDULE · ARTICLE 244(2) · SIXTH SCHEDULE · TRIBAL AREAS IN ASSAM, MEGHALAYA, TRIPURA AND MIZORAM.

ROOT PROBLEM ordinary territorial administration may reproduce dispossession and weak bargaining power.

ARTICLE 244(1) → Fifth Schedule → Scheduled Areas and Scheduled Tribes outside the Sixth Schedule map. → ARTICLE 244(2)

CONSTITUTIONAL BASIS / ARTICLE

- ROOT PROBLEM ordinary territorial administration may reproduce dispossession and weak bargaining power.
- ARTICLE 244(1)
- Fifth Schedule → Scheduled Areas and Scheduled Tribes outside the Sixth Schedule map.

POWER / PROCEDURE

- ARTICLE 244(2)
- Sixth Schedule → tribal areas in Assam, Meghalaya, Tripura and Mizoram.
- ARTICLE 244A

CHECK / LIMIT

- Parliament may create an autonomous State within Assam with legislature/CoM.
- Scheduled Tribe ≈ Article 342 community status
- Scheduled Area ≈ presidential territorial declaration tribal area ≈ Sixth Schedule territorial unit.

FEDERAL / RIGHTS IMPACT

- CORE IDEA differentiated institutions pursue substantive equality within one Constitution.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The central design question is not "special privilege versus equality" but whether identical rules would reproduce unequal bargaining power and historical dispossession.

01

STAGE 01 FIFTH SCHEDULE: DECLARATION, GOVERNOR, TAC AND REGULATION CHAIN

FIFTH SCHEDULE · DECLARATION, GOVERNOR, TAC AND REGULATION CHAIN · SCHEDULED AREA · PRESIDENT DECLARES, ENLARGES, DIMINISHES OR ALTERS AFTER THE CONSTITUTIONAL · EXECUTIVE CHAIN · STATE EXECUTIVE APPLIES · GOVERNOR REPORTS ANNUALLY/WHEN REQUIRED TO PRESIDENT · UNION MAY ISSUE DIRECTIONS ON ADMINISTRATION.

SCHEDULED AREA → President declares, enlarges, diminishes or alters after the constitutional consultation route. → EXECUTIVE CHAIN → State executive applies → Governor reports annually/when required to President → Union may issue directions on administration.

CONSTITUTIONAL BASIS / ARTICLE

- SCHEDULED AREA
- President declares, enlarges, diminishes or alters after the constitutional consultation route.
- EXECUTIVE CHAIN

POWER / PROCEDURE

- State executive applies → Governor reports annually/when required to President
- Union may issue directions on administration.
- TRIBES ADVISORY COUNCIL up to 20 members; as nearly as may be three-fourths ST legislators in the State.

CHECK / LIMIT

- advises on ST welfare/advancement matters referred by Governor.
- GOVERNOR'S REGULATION peace and good government → restrict/prohibit tribal land transfer
- regulate allotment → regulate money-lending

FEDERAL / RIGHTS IMPACT

- may amend State/Parliament law for the area.
- CHECK regulation requires Presidential assent; personal-discretion claims need exact authority.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The State does not lose executive power merely because an area is scheduled.

02

STAGE 02 SIXTH SCHEDULE TERRITORY, COUNCIL COMPOSITION AND FOUR-STATE SCOPE

SIXTH SCHEDULE TERRITORY, COUNCIL COMPOSITION AND FOUR-STATE SCOPE · MIZORAM ONLY. · AUTONOMOUS DISTRICT · GOVERNOR ORGANISES TERRITORY; MULTIPLE TRIBES MAY FORM AUTONOMOUS REGIONS. · ORDINARY DISTRICT COUNCIL MODEL NOT MORE THAN 30 MEMBERS · UP TO FOUR NOMINATED BY GOVERNOR · REMAINDER ELECTED BY ADULT SUFFRAGE · NORMALLY FIVE-YEAR ELECTED TERM.

Mizoram only.

AUTONOMOUS DISTRICT → Governor organises territory; multiple tribes may form autonomous regions. → ORDINARY DISTRICT COUNCIL MODEL not more than 30 members → up to four nominated by

CONSTITUTIONAL BASIS / ARTICLE

- Mizoram only.
- AUTONOMOUS DISTRICT

POWER / PROCEDURE

- Governor organises territory; multiple tribes may form autonomous regions.
- ORDINARY DISTRICT COUNCIL MODEL not more than 30 members → up to four nominated by Governor

CHECK / LIMIT

- remainder elected by adult suffrage → normally five-year elected term.
- REGIONAL COUNCIL created for an autonomous region; powers follow the Schedule and applicable rules.

FEDERAL / RIGHTS IMPACT

- ASSAM VARIATION special paragraphs/statutes/accord implementation may modify composition and powers.
- LIMIT ADC != State, municipality, ordinary Panchayat or Article 244A autonomous State.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Tribes Advisory Council gives Scheduled Tribe representatives a formal advisory voice, but its composition does not confer legislative or executive authority.

03

STAGE 03 SIXTH SCHEDULE LEGISLATIVE, EXECUTIVE, JUDICIAL AND FISCAL POWERS

SIXTH SCHEDULE LEGISLATIVE, EXECUTIVE, JUDICIAL AND FISCAL POWERS · LEGISLATIVE LAND OTHER THAN RESERVED FOREST · NON-RESERVED FOREST · SHIFTING CULTIVATION VILLAGE ADMINISTRATION · SOCIAL CUSTOMS · GOVERNOR ASSENT IS REQUIRED FOR COUNCIL LAWS. · EXECUTIVE PRIMARY SCHOOLS, DISPENSARIES, MARKETS, ROADS AND SPECIFIED LOCAL · JUDICIAL VILLAGE COURTS/COUNCIL COURTS FOR SPECIFIED TRIBAL-PARTY DISPUTES SUBJECT

CONSTITUTIONAL BASIS / ARTICLE

- LEGISLATIVE land other than reserved forest
- non-reserved forest
- shifting cultivation village administration
- social customs.

POWER / PROCEDURE

- Governor assent is required for council laws.
- EXECUTIVE primary schools, dispensaries, markets, roads and specified local services.
- JUDICIAL village courts/council courts for specified tribal-party disputes subject to constitutional/statutory supervision and jurisdiction rules.
- District/Regional Funds

CHECK / LIMIT

- land revenue
- listed taxes/fees
- mineral-royalty share.
- Governor territorial and suspension/dissolution powers

FEDERAL / RIGHTS IMPACT

- Parliament/State-law application controls
- audit and judicial review.
- LIMIT autonomy is substantial but enumerated and supervised, not sovereignty.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The subject list is specified and bounded; a council does not possess the plenary competence of a State legislature.

04

STAGE 04 FIFTH AND SIXTH SCHEDULES: COMPLETE CLOSE-OPTION COMPARISON

FIFTH AND SIXTH SCHEDULES · COMPLETE CLOSE-OPTION COMPARISON · DIMENSION FIFTH SCHEDULE SIXTH SCHEDULE · STATES MULTIPLE NOTIFIED STATES ASSAM/MEGHALAYA/TRIPURA/MIZORAM TERRITORY SCHEDULED AREA AUTONOMOUS · COMMON PURPOSE LAND/CUSTOM PROTECTION + SELF-GOVERNMENT + DEVELOPMENT ADMINISTRATION. · TAC IS ADVISORY, NOT AN ADC · SIXTH SCHEDULE DOES NOT COVER EVERY NORTH-EASTERN STATE.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
DIMENSION FIFTH SCHEDULE SIXTH SCHEDULE	Part IX ordinarily excluded	TAC is advisory, not an ADC	DIMENSION FIFTH SCHEDULE SIXTH SCHEDULE
States multiple notified States Assam/Meghalaya/Tripura/Mizoram territory Scheduled Area autonomous district/region core body Governor + TAC elected District/Regional Council	COMMON PURPOSE land/custom protection + self-government + development administration.	Sixth Schedule does not cover every North- Eastern State.	States multiple notified States Assam/Meghalaya/Tripura/Mizoram territory Scheduled Area autonomous district/region core body Governor + TAC elected District/Regional Council

CONSTITUTIONAL BASIS / ARTICLE

- DIMENSION FIFTH SCHEDULE SIXTH SCHEDULE
- States multiple notified States Assam/Meghalaya/Tripura/Mizoram territory Scheduled Area autonomous district/region core body Governor + TAC elected District/Regional Council

POWER / PROCEDURE

- Part IX ordinarily excluded
- COMMON PURPOSE land/custom protection + self-government + development administration.

CHECK / LIMIT

- TAC is advisory, not an ADC
- Sixth Schedule does not cover every North- Eastern State.

FEDERAL / RIGHTS IMPACT

- DIMENSION FIFTH SCHEDULE SIXTH SCHEDULE
- States multiple notified States Assam/Meghalaya/Tripura/Mizoram territory Scheduled Area autonomous district/region core body Governor + TAC elected District/Regional Council

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Fifth Schedule centres protective supervision through the Governor and TAC, whereas the Sixth Schedule creates elected territorial councils with limited self-government powers.

05

STAGE 05 PESA, FRA, LAND AND RESOURCE RIGHTS WITH JUDICIAL BOUNDARIES

PESA, FRA, LAND AND RESOURCE RIGHTS WITH JUDICIAL BOUNDARIES · PESA, 1996 · PART IX EXTENSION TO FIFTH SCHEDULE AREAS · CUSTOMARY VILLAGE/GRAM SABHA · PLANS/RESOURCES/MARKETS/LAND SAFEGUARDS THROUGH EXACT STATUTORY VERBS. · FRA, 2006 INDIVIDUAL/COMMUNITY FOREST RIGHTS + COMMUNITY FOREST-RESOURCE GOVERNANCE · MINING CHAIN TERRITORIAL LAW · LAND-TRANSFER RULE

PESA, 1996

Part IX extension to Fifth Schedule areas → customary village/Gram Sabha → plans/resources/markets/land safeguards through exact statutory verbs. → FRA, 2006 individual/community forest rights + community forest-resource governance through its own claim and recognition

CONSTITUTIONAL BASIS / ARTICLE

- PESA, 1996
- Part IX extension to Fifth Schedule areas → customary village/Gram Sabha
- plans/resources/markets/land safeguards through exact statutory verbs.

POWER / PROCEDURE

- FRA, 2006 individual/community forest rights + community forest-resource governance through its own claim and recognition procedure.
- LAND / MINING CHAIN territorial law → land-transfer rule → PESA role → FRA rights
- forest/environment clearance → rehabilitation → judicial review.

CHECK / LIMIT

- Samatha (1997) protected Scheduled-Area land under the applicable Andhra Pradesh regime
- not a detached nationwide mining ban.
- Orissa Mining Corporation (2013)

FEDERAL / RIGHTS IMPACT

- Gram Sabhas determined specified FRA religious/community-right claims at Niyamgiri
- not an unlimited veto over every project.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PESA applies different participatory requirements at planning, acquisition and minor-mineral stages, making correct sequencing essential to legally accurate project analysis.

06

STAGE 06 SCHEDULED TRIBE SAFEGUARDS BEYOND TERRITORIAL AUTONOMY

SCHEDULED TRIBE SAFEGUARDS BEYOND TERRITORIAL AUTONOMY · RIGHTS AND REPRESENTATION · ARTICLE 46 · EDUCATION/ECONOMIC INTERESTS AND PROTECTION FROM EXPLOITATION. · ARTICLES 330/332 · ST POLITICAL RESERVATION IN LOK SABHA/STATE ASSEMBLIES. · ARTICLE 335 · SERVICE CLAIMS CONSISTENT WITH ADMINISTRATIVE EFFICIENCY.

RIGHTS AND REPRESENTATION

Article 46 → education/economic interests and protection from exploitation. → Articles 330/332 → ST political reservation in Lok Sabha/State Assemblies. → Article 335 → service claims consistent with administrative efficiency.

CONSTITUTIONAL BASIS / ARTICLE

- RIGHTS AND REPRESENTATION
- Article 46 → education/economic interests and protection from exploitation.
- Articles 330/332 → ST political reservation in Lok Sabha/State Assemblies.

POWER / PROCEDURE

- Article 335 → service claims consistent with administrative efficiency.
- FINANCE AND OVERSIGHT
- Article 275(1) → specified grants

CHECK / LIMIT

- Article 338A → National Commission for Scheduled Tribes
- Article 339 → commission and Union welfare-scheme directions.
- NCST ROLE monitor safeguards → inquire into complaints → advise planning

FEDERAL / RIGHTS IMPACT

- report to President → recommendations and follow-up.
- NCST does not replace Governor/TAC, Gram Sabha, ADC, courts or elected governments.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Fifth Schedule paragraph 5 permits gubernatorial restrictions on tribal land transfers in Scheduled Areas, subject to required TAC consultation and presidential assent.

07

STAGE 07 ARTICLE 371, ORDINARY PANCHAYATS, AUTONOMOUS COUNCILS AND PROPOSAL CONTROL

ARTICLE 371, ORDINARY PANCHAYATS, AUTONOMOUS COUNCILS AND PROPOSAL CONTROL · DO NOT COLLAPSE FOUR SYSTEMS · ARTICLE 371A/371G · STATE-SPECIFIC PART XXI CONSENT SHIELDS. · FIFTH SCHEDULE · GOVERNOR/TAC ADMINISTRATION FOR SCHEDULED AREAS. · SIXTH SCHEDULE · AUTONOMOUS DISTRICT/REGIONAL COUNCILS IN FOUR STATES.

DO NOT COLLAPSE FOUR SYSTEMS

Article 371A/371G → State-specific Part XXI consent shields. → Fifth Schedule → Governor/TAC administration for Scheduled Areas. → Sixth Schedule → autonomous district/regional councils in four States.

CONSTITUTIONAL BASIS / ARTICLE

- DO NOT COLLAPSE FOUR SYSTEMS
- Article 371A/371G → State-specific Part XXI consent shields.
- Fifth Schedule → Governor/TAC administration for Scheduled Areas.

POWER / PROCEDURE

- Sixth Schedule → autonomous district/regional councils in four States.
- ordinary Part IX → Panchayats outside exclusions; PESA modifies Fifth Schedule route.
- ACCOUNTABILITY TENSIONS autonomy vs elite capture

CHECK / LIMIT

- custom vs individual rights development vs land/resource security
- Governor oversight vs elected legitimacy.
- CURRENT CONTROL

FEDERAL / RIGHTS IMPACT

- Ladakh or other demands for Sixth Schedule/Statehood/Article 371 safeguards remain proposals until the Constitution or law is validly changed.
- REFORM clear jurisdiction + audited funds + accessible laws + women/community voice
- transparent Governor action + timely rights recognition.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The ordinary Sixth Schedule council has up to thirty members with limited nomination, but constitutional amendments create institution-specific exceptions that cannot be generalised.

08

STAGE 08 PRELIMS FIREWALLS, MAINS ARCHITECTURE AND QUALIFIED TRIBAL-GOVERNANCE SYNTHESIS

PRELIMS FIREWALLS, MAINS ARCHITECTURE AND QUALIFIED TRIBAL-GOVERNANCE SYNTHESIS · PRELIMS FIREWALL · PRESIDENT DECLARES SCHEDULED AREAS · GOVERNOR MAKES FIFTH SCHEDULE REGULATIONS · PRESIDENT ASSENTS · TAC ADVISORY · ADC LAWS NEED GOVERNOR ASSENT RESERVED FOREST EXCLUDED FROM · ARTICLE 244A APPLIES ONLY WITHIN ASSAM.

PRELIMS FIREWALL → President declares Scheduled Areas → Governor makes Fifth Schedule regulations → President assents → TAC advisory

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL
- President declares Scheduled Areas
- Governor makes Fifth Schedule regulations
- President assents
- TAC advisory

POWER / PROCEDURE

- ADC laws need Governor assent reserved forest excluded from listed ADC forest power
- Article 244A applies only within Assam.
- PYQ ROUTES
- Fifth/Sixth identification
- council composition/powers

CHECK / LIMIT

- PESA verbs
- FRA relationship
- Article 275/339
- land/mining case limits.
- MAINS SPINE define differentiated autonomy → identify territory → map institution/power

FEDERAL / RIGHTS IMPACT

- rights/development purpose → accountability risk → named case with limit
- reform through voice, legality, capacity and audit.
- SYNTHESIS autonomy earns legitimacy when it protects land and custom while remaining inclusive, reviewable, fiscally accountable and capable
- of delivering development.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The President declares Scheduled Areas and specifies Scheduled Tribes through separate routes, while Governors organise Sixth Schedule districts and handle specified council laws.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · THE BIG PICTURE · PART A — FIFTH SCHEDULE (ADMINISTRATION OF SCHEDULED AREAS) · PART B — SIXTH SCHEDULE (ADMINISTRATION OF TRIBAL AREAS) · PART C — FIFTH VS SIXTH SCHEDULE (COMPARE) · PRESIDENT APPOINTS A COMMISSION ON SCHEDULED-AREA ADMINISTRATION — COMPULSORILY · SIXTH SCHEDULE APPLIES TO ALL NE STATES · ONLY ASSAM, MEGHALAYA, TRIPURA, MIZORAM (NOT NAGALAND/MANIPUR/

OPTIONAL DOCTRINE / CASE

- THE BIG PICTURE
- PART A — FIFTH SCHEDULE (Administration of Scheduled Areas)
- PART B — SIXTH SCHEDULE (Administration of Tribal Areas)
- PART C — FIFTH vs SIXTH SCHEDULE (compare)

ADVANCED LIMIT

- Commissions: President appoints a commission on scheduled-area administration — compulsorily after 10
- NOT: Sixth Schedule applies to all NE states → only Assam, Meghalaya, Tripura, Mizoram (not Nagaland/Manipur/
- NOT: Fifth Schedule covers the whole country → excludes the 4 Sixth-Schedule states .
- NOT: Tribes Advisory Council makes laws → it is advisory only; the District Councils (Sixth Schedule) legislate.

COMPARATIVE NUANCE

- NOT: District Council has 30 all-elected members → 26 elected + 4 nominated by the Governor.
- NOT: President declares tribal areas under the Sixth Schedule → the Governor organises autonomous districts;
- NOT: Fifth-Schedule regulations need the Governor's assent → they need the President's assent.
- CAUTION: Ladakh's demand for Sixth Schedule status (tribal-majority UT) — a major live agitation (links to Ch 22

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels